

		determination regarding the amount that Defendants Don and Lynn Southard and Rob McPherson are to reimburse Western Tap for unauthorized distributions of money and unauthorized payments of their personal expenses. <u>Any such monies should be deducted from distributions payable to any of the Defendants, including from proceeds from the sale of the Dale Street Property</u> (October 8, 2024 Judgment, emphasis added.) Moreover, prior to the conveyance, “pending the decision of the Court of appeal.....counsel for Plaintiff in the Lawsuit advised counsel for the Southards that....no alienation of the property should occur before the Plaintiff’s appeal was resolved.” (Compl. ¶ 46.) Thus, whether the original Judgment or the Judgment after Trial and Post-Appeal was in effect, both contemplated a lien on the property. Defendant has not shown that the statute of limitations has run on any of the claims on demurrer. Thus, the Motion is overruled.
10	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien Off Calendar
11	Nguyen vs. Gonzales 2024-01374578	Demurrer to Amended Complaint Defendant Gallagher Bassett Services, Inc.’s demurrer to Plaintiff Peter Nguyen’s Second Amended Complaint is sustained. The Court takes judicial notice of Plaintiff’s First Amended Complaint (ROA 13) on its own motion. (See <i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447–1448.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and

incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

6th cause of action for negligence

The elements of negligence are: “(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Plaintiff alleges that “Defendant GALLAGHER BASSETT voluntarily undertook to investigate and handle Plaintiffs claim. In doing so, it owed a duty to exercise reasonable care.” (2AC, pg. 6.)

Plaintiff’s First Amended Complaint (“FAC”) attached letters confirming that Gallagher Bassett is a third-party claims administrator for Garden Grove Hospital. (FAC, Exs. B and C.) In the first letter, Defendant states it was retained by Garden Grove Hospital to investigate Plaintiff’s claims. (FAC, Ex. B.) Defendant then followed up to state that it completed its investigation and denied the claim. (FAC, Ex. C.)

As a matter of law, Defendant cannot be liable for Plaintiff’s claims, as agents and third-party claims administrators are not liable in tort to third parties for performance of their duties and responsibilities to their principal. (See *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 576 (agents of defendant not liable/had no duty to plaintiff as a result of insurer defendants’ alleged breaches if duty); *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 824 (same); *Thompson v. Cannon* (1990) 224 Cal.App.3d 1413, 1415, 1418 (independent insurance adjuster who investigated claim for fire insurer owes no fiduciary duty to insured); *Lippert v. Bailey* (1966) 241 Cal.App.2d 376, 383-384 (action against insurance agents improper because negligence is attributed only to the agents’ principal/the insurer).)

In addition, in *Sanchez v. Lindsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, the court held that an “independent

adjuster engaged by an insurer owes no duty of care to the claimant insured, with whom the adjuster has no contract. The adjuster is not liable in tort to the insured for alleged negligent claims handling which causes only economic loss.” (*Id.* at 250-251.)

Plaintiff argues that he states allegations establishing independent tort liability on the part of Defendant Gallagher, based on its own conduct. These allegations are not supported by Plaintiff’s prior pleadings. The First Amended Complaint establishes that Defendant was hired by Garden Grove Hospital to investigate Plaintiff’s, contrary to Plaintiff’s allegations in the 2AC (that Defendant voluntarily undertook its investigation). The alleged facts and exhibits do not support Defendant’s direct liability to Plaintiff.

Courts “will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) “Where, as here, a demurrer is to an amended complaint, we may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making ‘contradictory averments, in a superseding, amended pleading.’” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034 (citations and quotation marks omitted).)

Accordingly, Plaintiff fails to plead a negligence claim against Defendant Gallagher.

7th cause of action for aiding and abetting

“Liability may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person.” (*Richard B. LeVine, Inc. v. Higashi* (2005) 131 Cal.App.4th 566, 574.)

Plaintiff alleges that “Defendant GALLAGHER BASSETT had knowledge of the wrongful conduct of Defendants SINCLAIR, GONZALES, and HOSPITAL,” and “substantially assisted or encouraged such conduct.” (2AC, pg. 6.)

Pursuant to “the agent's immunity rule, an agent is not liable for conspiring with the principal when the agent is acting in an official

capacity on behalf of the principal.” (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326 [citing *Applied Equip. Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 512, fn. 4]; see also *Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc.* (2005) 131 Cal.App.4th 802, 817.)

The demurrer to this cause of action is therefore also sustained.

8th cause of action for declaratory relief

Code of Civil Procedure §1060 provides: “Any person ... who desires a declaration of his or her rights or duties with respect to another, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... in the superior court....” (Italics added.) “Thus, declaratory relief is appropriate only where there is an actual controversy, not simply an abstract or academic dispute.” (*Connerly v. Schwarzenegger* (2007) 146 Cal. App. 4th 739, 746–47 (citations omitted).)

Plaintiff alleges: “An actual controversy exists regarding the rights and obligations of the parties arising out of the July 21, 2023 incident.” (2AC, pg. 6.)

As pled, this cause of action is derivative of Plaintiff’s other causes of action. “Generally, an action in declaratory relief will not lie to determine an issue which can be determined in the underlying tort action.” (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623–1624.) Code Civ. Proc., § 1060 “should not be used for the purpose of anticipating and determining an issue which can be determined in the main action,” as the “object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.” (*Id.* [citing *General of America Ins. Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470].)

Thus, the Court sustains the demurrer to the 8th cause of action as well.

Plaintiff submitted a response to Defendant’s reply brief. (ROA 160.) There is nothing in the Code of Civil Procedure that provides for such a filing. Accordingly, the Court has not considered it.

The Court is inclined to sustain Defendant’s demurrer without leave to amend unless Plaintiff is able to articulate a factual basis for these claims at the hearing.

		Defendant shall give notice. Case Management Conference CMC and OSC for service on all remaining defendants 12-14-26 at 9:00 a.m.
12	Soule vs. Ascensus LLC 2025-01535494	Motion to Deem Facts Admitted Plaintiff Luke Soule’s Motion for Order Deeming Requests for Admission Admitted is denied. The Court grants Plaintiff’s request for judicial notice of the motion to strike filed on 4/6/26. If a party fails to serve a timely response to requests for admission, the requesting may move for an order that the requests be deemed admitted. (Code Civ. Proc. § 2033.280, subd. (b).) The court “shall” make this order unless, before the hearing, a proposed response in substantial compliance with CCP section 2033.220 has been served. (<i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762, 776 [service of substantially compliant responses prior to the hearing on the “deemed admitted” motion will defeat a propounding party’s attempt to have the requests deemed admitted].) The moving party need not meet and confer before bringing this motion. (<i>Id.</i> at pp. 777-778.) The Court finds Plaintiff is not entitled to relief under CCP section 2033.280, because Defendant timely served its response on 4/7/26. (Soule Decl. at ¶ 7; Peterson Decl. at ¶ 6, Exh. B.) A “response” to a request for admission includes: an answer, an objection, or a partial objection and answer. (Code Civ. Proc., §§ 2033.210, subd. (b), 2033.230, subd. (a).) Although Plaintiff complains that Defendant’s response consists “entirely of identical boilerplate objections — without a single admission, denial, or statement of insufficient knowledge,” this is not a basis for deeming the matters in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) Rather, the appropriate motion is a motion to compel a <i>further</i> response under CCP section 2033.290. Plaintiff’s reliance on <i>Appleton</i> is misplaced. <i>Appleton</i> is not applicable, because it merely stands for the holding that the actual answers must be verified, and unverified responses may result in the imposition of sanctions. (<i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 635–636.) However, when a response consists of only